

TOWN OF NORTH CASTLE
ZONING BOARD OF APPEALS
15 Bedford Road, Armonk, NY 10504
January 4, 2024 7:30 p.m.

ZONING BOARD MEMBERS:

Joseph Monticelli, Chairman
John L. Stipo
Robert Greer
Scott Stopnik
Ray Rodriguez

ALSO PRESENT:

Gerald Reilly, Esq. Town Counsel
Rob Melillo, Building Insp.
Lori J. Zawacki, Secretary

The meeting was called to order at 7:30 p.m. Roll call by the Secretary. All members present, except Ray Rodriguez and Chairman Monticelli.

Approval of Minutes

John Stipo made a motion to accept the minutes of the meeting of December 7, 2023. Bob Greer seconded the motion.

The Secretary announced the Chairman was not able to attend this evening as well as Mr. Rodriguez and there was a quorum, however if any applicant felt they would prefer to come back for a presentation and vote by a full Board they could ask for an adjournment.

The Secretary read the first application and the Public Hearing was open.

JASON & BRITTANY ROSLIN, 23 Cat Rocks Drive, Bedford, NY 10506 and known on the Town Tax Assessment Maps as Section 102.01, Block 2, Lot 56 and located in an R2A Zoning District. In order to construct a new two story three (3) car garage the applicant will need the following:

Pursuant to Section 355-26C of the Town Code the maximum gross land coverage permitted is 16,730 sq. ft. where 19,954 sq. ft. is provided requiring a variance of 3,124 sq. ft.

The application was represented by Wally Toscano, Architect for the project. Mr. Toscano stated the lot size is 2.3 acres and has a very long driveway and the house is 3400 sq. ft. He called it a "party house" as most of the area is living room, dining room and kitchen and sunroom. The family is growing and there is too much open space and the Roslins decided to expand the house.

The existing garage will become a family room and they want to add a new garage. We want the new garage to take the place of the existing garage.

Mr. Stipo asked what type of variance was required.

The Secretary stated gross land coverage.

Mr. Toscano stated everything else complies.

There was a short discussion and it was determined the applicant needed about an 18% gross land coverage variance.

Mr. Stopnik asked how close were any neighbors to the proposed new garage.

Mr. Toscano stated that they were not close at all.

Mr. Greer asked if all the required neighbors were noticed and have no objections?

Mr. Toscano said no one objected.

The Secretary asked if there were any Noticed Neighbors present for this application here this evening. There were none and nothing was received by the Secretary by email or phone calls before the meeting.

Mr. Stopnik stated so this will be a 3 car garage.

Mr. Toscano stated yes.

Mr. Stopnik asked so the existing garage contains how many vehicles 3?

Mr. Toscano stated that is has 3.

Mr. Stopnik stated he had no further questions along with the other members.

The Secretary asked if there were any other questions or concerns from the Public. There were none and the Public Hearing was closed.

Mr. Stipo made a motion to grant the variance and it was 2nd by Mr. Greer.

Mr. Stopnik discussed the five factors concerning this variance. He stated when considering a variance there are a number of questions that need to be asked first of which is it a substantial variance. Certainly an 18% increase is a substantial variance. The next question is whether or not there is an alternative or a lesser variance. I am considering that one garage is being replaced by another garage with the exact same number of vehicles and don't see how there would be a lesser type of variance to account for the new addition. Does it change the character of the neighborhood? You answered my question when you stated it is not in the view of any of the

adjacent neighbors and furthermore none of the noticed neighbors have identified any issues or concerns. I believe this variance satisfies that criterion. The final question is whether it negatively impacts the neighbors or the environment and based upon what I just mentioned I think the same goes here. It does not adversely impact the neighborhood and I see no environmental impact as we are not making 2 new garages, we are just shifting everything. For these reasons I motion to grant the variance.

Mr. Stipo adopted the findings by Mr. Stopnik into his motion to grant and Mr. Greer 2nd the motion.

Roll call by the Secretary: John Stipo – Yes, Bob Greer – Yes, and Scott Stopnik – Yes. The motion was granted by a unanimous vote of 3-0.

The Secretary read the next application and the Public Hearing was opened.

EDWARD OLANOW, 21 Wampus Lakes Drive, Armonk, NY 10504 and known on the Town Tax Assessment Maps as Section 100.04, Block 2, Lot 47 and located in an R2A Zoning District. In order to construct a new one family dwelling the applicants will need the following:

Pursuant to Section 355-26C of the Town Code the maximum permitted gross land coverage is 25,633 sq. ft. where 27,409 sq. ft. is provided, requiring a variance of 1,776 sq. ft.

The application was represented by Scott Fisher, Architect for the project. He stated the existing condition is with a long driveway which is shared by the neighbor and then a turn off into their property. This section had to be counted into the calculations for the gross land coverage. Presently the gross land coverage is a little over 31,000 sq. ft. which is 22.6% over the maximum allowable. The second drawing is the proposed plan wherein they keep the shared driveway, but once you hit the property line the driveway has been narrowed down a little bit and reconfigured as well as the house is being rotated for better views. The patio has been minimized around the pool and the existing tennis court is shrinking down a little bit as well to make the total less over the maximum allowable. The new proposed is approximately 1,776 sq. ft. over the allowable about 3000 sq ft. less than existing.

Mr. Reilly confirmed that the proposed is less than what is existing.

Mr. Fisher stated yes.

Mr. Greer asked if he had heard from any neighbors.

Mr. Fisher stated no.

The Secretary asked if there were any noticed neighbors in the Public here this evening. There were none and stated she had not received any correspondence from anyone regarding this application.

Mr. Stopnik stated that this variance is under 10% .

Mr. Fisher said that it was 6.9%.

Mr. Reilly added it is a reduction of what currently exists.

The Secretary closed the Public Hearing.

Mr. Stopnik made a motion to grant the motion and that the criteria is this substantial? It is diminimus. And based upon the modifications being done here it is less coverage, which is a positive. The character of the neighborhood will not be changed, but even made better. Finally, it does not negatively impact the neighborhood or environment and there is nothing here that has been presented that would suggest that would be the case. For those reasons I make a motion in favor of the variance.

The motion was 2nd by Bob Greer.

Roll call by the Secretary: John Stipo – Yes, Bob Greer – Yes and Scott Stopnik – Yes. The variance was granted by a unanimous vote of 3-0.

The Secretary read the next application and the Public Hearing was opened.

AMY NATSOULIS & WILLIAM BRODSKY, 12 Hillandale Drive, Armonk, NY 10504 and known on the Town Tax Assessment Maps as Section 108.01, Block 3, Lot 24 and located in an R1A Zoning District. In order to construct an addition to the existing house the applicants need the following:

Pursuant to Section 355-21 of the Town Code the required side yard setback in the R1A zoning district is 25 ft., where 18 ft. are provided, requiring a variance of 7 ft.

This application was represented by Amanda Linhart, Architect for the project.

Ms. Linhart stated they are expanding an existing 2800 sq. ft. split level house. There is a very large 1 acre lot. They would like to add a bay to the garage. Currently they have a 2 bay garage with one side used as a workshop. They would like to add the second bay and keep the workshop and be able to park 2 cars inside the garage.

Mr. Stopnik stated so effectively it will be a three bay garage.

Ms. Linhart sated the front part of the bay would be turned into a mudroom so only a two car garage. The rest of the addition is in the rear which does not require a variance, only this side

area. The neighbors are not close on that side and there is a lot of greenery and coverage as well with a steep hill which will abut the new section and they are lower than their neighbors.

Mr. Greer asked if they had heard from the neighbors.

Ms. Linhart and the owners did not hear from any neighbors.

Mr. Reilly confirmed that they were in fact noticed.

The Secretary stated the applicant had met all the requirements and noticed all the neighbors within 250 ft. No one had contacted me regarding this application.

The Public Hearing was closed.

Mr. Stopnik made a motion to approve the variance. To review the criteria as we have for the preceding variances and for all, the first question is it substantial? Seven feet in this situation is frankly a di minimis type of variance here particularly since the applicant has explained the addition is adjacent to a hill and there are no issues with anything being exposed to the adjacent neighbors. Is there an alternative or a lesser variance? For the purpose for what this variance is being sought there is nothing to suggest that there is an alternative in expanding the garage from where it is now, and this application is the only such measure in order to accomplish this. Does it change the character of the neighborhood? A 7 ft variance cannot be said to change the character of the neighborhood and does it negatively impact the neighborhood or environment, again, based on the applicant's variance being sought there is nothing to suggest or any evidence to suggest that this adversely impacts the environment or the neighborhood, and as such I make this motion in support of granting the applicant's variance.

The motion was 2nd by John Stipo.

Roll call by the Secretary: Bob Greer- Yes, John Stipo – Yes, and Scott Stopnik – Yes. The variance was granted by a unanimous vote of 3-0.

Motion to close the meeting and 2nd.

Respectfully submitted,

Lori J. Zawacki